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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

REQUEST FOR JUDICIAL NOTICE

(Evid. Code § 451–453)

Dept.: 610

Date: June 24, 2026

**PLAINTIFF’S REQUEST FOR JUDICIAL NOTICE IN SUPPORT OF
MOTION FOR ORDER PERMITTING SPECIFIED DISCOVERY UN-
DER CCP SECTION 425.16, SUBDIVISION (G) (BRITTS V. SUPERIOR
COURT, (2006) 145 CAL.APP.4TH 1112; CCP SECTION 425.16, SUBDI-
VISION (G))**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

I. REQUESTS UNDER EVIDENCE CODE SECTION 451

Pursuant to Evidence Code section 451, subdivisions (a) and (b), and Evidence Code section 453, Plaintiff respectfully requests that this Court take judicial notice of the following two items of authority. Each is the proper subject of mandatory judicial notice under section 451 because each is a matter that the Court is required to notice under California law.

Item 1: CCP section 425.16, subdivision (g) (verbatim statutory text)

The verbatim text of Code of Civil Procedure section 425.16, subdivision (g), is as follows:

“(g) All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.”

(CCP section 425.16, subd. (g).)

The text quoted above is the operative text of section 425.16, subdivision (g), as in effect at the time of filing of this Request. It is a public statute of the State of California and is a proper subject of judicial notice under Evidence Code section 451, subdivision (a) (“The decisional, constitutional, and public statutory law of this state and of the United States and the provisions of any charter described in Section 3, 4, or 5 of Article XI of the California Constitution.”).

Item 2: Britts v. Superior Court (2006) 145 Cal.App.4th 1112

The published opinion in Britts v. Superior Court (2006) 145 Cal.App.4th 1112, 52 Cal.Rptr.3d 1, is a published decision of the California Court of Appeal (Second Appellate District). The opinion is a proper subject of judicial notice under Evidence Code section 451, subdivision (a). It is also a published decision and the law of California regarding the operation of CCP section 425.16, subdivision (g).

The Britts opinion is attached to this Request as Exhibit 1.

II. RELEVANCE

This Request is made in support of Plaintiff's contemporaneously filed Motion for Order Permitting Specified Discovery Under CCP Section 425.16, Subdivision (g). The two items of authority are the controlling statutory text and the controlling published California Court of Appeal authority that frame the Court's analysis on the Motion.

1. **CCP section 425.16, subdivision (g).** The verbatim text places the express specified-discovery carve-out at the same level of authority as the discovery stay itself. The Court applies the carve-out under its plain meaning. (See Code Civ. Proc., section 1858; Cal. Code Civ. Proc., section 425.16, subd. (g).) Plaintiff's Memorandum of Points and Authorities Section IV walks through the structural design of the statute. The verbatim text is offered so that the Court has the operative language squarely on the record without dispute.
2. **Britts v. Superior Court.** The opinion is the controlling California Court of Appeal decision describing how plaintiffs may obtain specified discovery during the section 425.16(g) stay. Plaintiff's Memorandum Section V relies on Britts for four propositions: (a) the section 425.16(g) stay is broad but not absolute; (b) the carve-out is the designed off-ramp; (c) the procedure is a separately noticed motion; and (d) good cause is tied to second-prong needs. (Britts, supra, 145 Cal.App.4th at pp. 1124 to 1125.)

The Court is invited to take judicial notice of both items so that the operative authority is squarely on the record for the June 24, 2026 hearing.

III. SCOPE OF NOTICE REQUESTED

Plaintiff requests judicial notice of:

1. The existence, text, and effect of CCP section 425.16, subdivision (g), in its current operative form, as a public statute of the State of California.
2. The existence and content of Britts v. Superior Court (2006) 145 Cal.App.4th 1112, including the legal propositions stated by the Court of Appeal therein, as a published decision of the California Court of Appeal.

Plaintiff does not request judicial notice of the truth of any disputed fact in any underlying record

1 incidental to the Britts opinion or in any party-authored extract or commentary about the opinion.
2 The judicial notice requested is of the items themselves (statute and published opinion), and of
3 the legal propositions they state, in accordance with Evidence Code section 451 and the limit
4 articulated in *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1568 (judicial notice extends to the
5 existence of court records and to legal effects of statutes and published opinions, not to disputed
6 factual matter outside the four corners of the noticed item).

8 **IV. PROCEDURAL AUTHORITY FOR THE JUNE 24, 2026 HEARING** 9 **LINE**

10 By minute order entered May 13, 2026 (Hon. Joseph M. Quinn, Dept. 302, M. Goodman clerk),
11 this Court continued and consolidated the pending Dept. 302 matters in this action to a single
12 hearing on June 24, 2026, 9:00 a.m., Department 302. By the parties' subsequent stipulation and
13 on the Court's order, all remaining Dept. 302 line items were folded into the June 24, 2026 cohort.
14 This Request is filed in conformity with that consolidation order and is associated with the Motion
15 for Order Permitting Specified Discovery filed concurrently.

17 **V. PROPOSED ORDER LANGUAGE**

18 Plaintiff respectfully proposes that this Court enter the following:

19 "The Court takes judicial notice under Evidence Code section 451, subdivisions (a) and (b), of
20 (1) Code of Civil Procedure section 425.16, subdivision (g), as a public statute of the State of
21 California, and (2) *Britts v. Superior Court* (2006) 145 Cal.App.4th 1112, as a published decision
22 of the California Court of Appeal. The judicial notice is taken of the existence, text, and legal
23 effect of those items, and not of the truth of any disputed fact in any record incidental to those
24 items."

1 **VI. EXHIBITS**

2 **Exhibit 1.** Published opinion in Britts v. Superior Court (2006) 145 Cal.App.4th 1112, 52
3 Cal.Rptr.3d 1 (Second Appellate District). Pin-cites used in the moving papers: pp. 1124 to 1125.

4 **Exhibit 2.** Verbatim text of CCP section 425.16, subdivision (g). [Reproduced in Section I above;
5 Plaintiff treats Section I as serving the function of Exhibit 2 because the statutory text is short and
6 is reproduced verbatim within the four corners of this Request.]

7
8 **VII. SERVICE**

9 This Request and Exhibit 1 are served on Defendant's counsel of record (Mark G. Tapp, Tyler J.
10 O'Connell, Mason Schubert, and Sarah J. Blithe, Porter Scott, P.C.) by electronic mail per CCP
11 section 1010.6 and Cal. Rules of Court, rule 1.21, with a Proof of Service (POS-050) filed con-
12 temporaneously.

13
14 Date: May 21, 2026

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Proper categories; neutral descriptions	Items list sources only	Items for notice
2	CRC 3.1306(c)	Request format and item list	Numbered items with citations	RFJN body
3	CRC 3.1113	Organized authority references	TOA or inline cites as used	Body